

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

MSRF, INC., *Complainant*

v.

YANG MING TRANSPORT CO., *Respondent*.

DOCKET NO. 22-21

Served: July 14, 2023

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

ORDER ON RESPONDENT’S MOTION TO STRIKE OR DISREGARD COMPLAINANT’S REPLY BRIEF

On July 6, 2023, Respondent Yang Ming Transport Co. (“Yang Ming”) filed a Motion to Strike or Disregard Complainant’s Reply Brief (“Motion to Strike”). Complainant MSRF, Inc. (“MSRF”) opposes the Motion to Strike. As discussed below, Yang Ming will be permitted to file a surreply brief and supplemental appendix by July 21, 2023. In addition, Complainant MSRF must file a table of contents for the Supplemental Appendix by July 18, 2023.

Yang Ming seeks through its Motion to Strike for the undersigned to strike Complainant’s reply brief and supplemental appendix, or in the alternative, to disregard “the new argument/evidence,” in the reply brief, two actions which Yang Ming states present “no meaningful difference.” Motion to Strike at 1-2; fn. 1, 2. Yang Ming contends that MSRF raises “new argument and evidence that was required to be in the Opening Brief....” Motion to Strike at 1. In addition, Yang Ming asserts that MSRF seeks to introduce new evidence by submitting a supplemental appendix absent a motion to for leave to submit supplemental evidence and contrary to the briefing schedule. Motion to Strike at 5. Finally, Yang Ming asserts that it should be allowed to file a surreply brief, “[a]s a final resort....” *Id*.

On July 12, 2023, MSRF filed an opposition to Yang Ming’s motion, asserting that it “merely responded to the allegations and arguments Yang Ming made in their Opposition Brief” and “clarified and explained the arguments it had already made in its Opening Brief.” Opposition to Motion at 6. MSRF also opposes the filing of a surreply by Yang Ming, stating that Yang Ming’s opposition brief sufficiently covered every possible argument MSRF could have made. *Id*.

For the reasons stated below, Yang Ming’s Motion to Strike is **GRANTED IN PART AND DENIED IN PART**.

MSRF did not move to admit supplemental evidence into the record in a timely manner that would have allowed Yang Ming to address it in its opposition brief. Because MSRF did not cite to Yang Ming’s Appendix for those items that were already in the record, and/or added

evidence that had not been included in either its own or Yang Ming's Appendix, it deprived Yang Ming of the opportunity to refute that evidence. While Yang Ming states, "[s]pecifically, the presiding Officer should decline to consider Complainant's new legal arguments about FMC precedent (Complainant's Reply Brief at pages 5-16) and its new assertions of fact (Complainant's Reply Brief at pages 10-12)," the Reply Brief is 12 pages in its entirety, not 16. Motion to Strike at 6. Pages 10-12 address the admissibility of the damages worksheet and how it was calculated which was addressed in Complainant's Initial Brief and then disputed in Yang Ming's Opposition Brief.

Because the Motion to Strike does not specify what Yang Ming alleges are "new legal arguments" or "new assertions of fact," the most efficient way to resolve this proceeding while ensuring that the decision is based on the merits is to allow Yang Ming to submit a surreply. Yang Ming submitted a comprehensive opposition brief, and a surreply was not contemplated by the schedule. Accordingly, the surreply will be limited to no more than 12-pages, which is the length of Complainant's reply brief. Other parties should not assume that surreply briefs will be permitted. Additionally, Respondent should address in its surreply only what it alleges are the new arguments and new facts presented in Complainant's Reply Brief.

Additionally, it is unclear to what evidence Yang Ming objects as new in MSRF's supplemental appendix since it says it has no objection to the portions of the appendix that were included in Yang Ming's appendix, but not properly cited. Motion to Strike at fn. 2. Respondent asserts that Complainant submitted email chains that had been exhibited by it only in part, and Complainant did not cite to Yang Ming's Appendix. If Respondent finds that the email chain was altered or is missing a portion of the chain, it may provide what it alleges is the missing or is the correct version of the email chain. If Yang Ming submits a supplemental appendix, the formatting and numbering requirements for the initial appendix should be followed. In addition, Yang Ming should specify what evidence in Respondent's exhibit it is responding to with each piece of additional evidence submitted.

Yang Ming's request for 7-days after the service of this Order to file its surreply is reasonable and will be granted.

Accordingly,

IT IS ORDERED that Respondent Yang Ming's motion to strike or disregard Complainant MSRF's Supplemental Appendix be **DENIED**,

IT IS FURTHER ORDERED that Respondent Yang Ming's motion to strike or disregard Complainant MSRF's Reply Brief in its entirety be **DENIED**,

IT IS FURTHER ORDERED that Respondent Yang Ming's motion for leave to file a surreply brief be **GRANTED** and is limited to 12 pages and due by July 21, 2023.

IT IS FURTHER ORDERED that Complainant MSRF file a table of contents for the Supplemental Appendix by July 18, 2023, as set forth in the initial Scheduling Order dated October 13, 2022. Scheduling Order at 3.

In the future, Complainant MSRF should review and must comply with all procedural scheduling orders. Future submissions that include attachments that are not specified in the order without a motion to supplement the record may be rejected.

A handwritten signature in blue ink, reading "Linda S. Harris Crovella".

Linda S. Harris Crovella
Administrative Law Judge